

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: July 31, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER GRANTING RESPONDENT’S MOTION FOR RECONSIDERATION

On July 30, 2025, Respondent filed Respondent’s Motion for Reconsideration (“MFR”). For the reasons discussed below, the Motion for Reconsideration is **GRANTED**.

On July 29, 2025, Respondent filed a Motion for Extension of Time to Respond to Claimant’s Motion for Summary Judgment (“Motion MSJ Extension”). Also on July 29, 2025, Complainant filed Complainant’s Response in Opposition to Respondent’s Motion for Extension of Time to Respond to Claimant’s Motion for Summary Judgment.

On July 29, 2025, I issued an Order Denying Without Prejudice Motion for Extension of Time to Respond to Claimant’s Motion for Summary Judgment (the “July 30 Order”). The July 30 Order denied the Motion MSJ Extension pursuant to Commission Rule 102 because Respondent did not offer any “reasonable grounds” for failing to file the motion to extend at least seven days before the deadline to be extended. (July 30 Order, at 1 (citing 46 C.F.R. § 502.102(a))). The July 30 Order, however, noted that the request for a six-day extension to respond to Complainant’s Motion for Summary Judgment was reasonable and did not appear to prejudice Complainant. In addition, the July 30 Order encouraged the parties agree to such extension requests going forward.

Also on July 30, 2025, Respondent filed its MFR. The MFR set forth reasons for Respondent’s delay in filing the Motion MSJ Extension, namely, that Respondent’s counsel was in transit, and counsel lost a paralegal. (*See* MFR). I find that these reasons for the delayed filing, coupled with counsel’s recent appearance, constitute reasonable grounds for the belated filing of the Motion MSJ Extension.

On July 31, 2025, Complainant filed Complainant’s Response in Opposition to Respondent’s Motion for Reconsideration. Complainant asserts that an extension would cause it to suffer prejudice because of the unavailability and schedule of Complainant’s representative. Complainant also asserts that personal reasons are no excuse for failing to comply with deadlines. I respectfully disagree. It may be appropriate to extend deadlines for personal issues

confronting a party's representative. For example, it would be appropriate to extend a deadline for an appropriate amount of time if a party's representative is scheduled to undergo a medical procedure (indeed, such an extension would appropriately be consented-to by the opposing party's representative).¹

For these reasons, the MFR is **GRANTED**. Respondent must respond to the Motion for Summary Judgment no later than **August 5, 2025**. Complainant may file a reply in support of the Motion for Summary Judgment no later than **August 12, 2025**.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge

¹ If Complainant's representative needs a reasonable amount of additional time to file a reply in support of Complainant's Motion for Summary Judgment, I am willing to consider an appropriate motion.